

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JACK SPILBERG,

Petitioner

VS.

BROOKE SCHUMACHER,

Respondent

) Case Number: FDI-20-793956

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jack Spilberg (Father) and Respondent Brook Schumacher (Mother). They share one minor child: Bodie (DOB: 11/13/13).
- 2) On 12/30/21, the Court entered Judgment of Dissolution, Article 11 of which reserves jurisdiction over child support and includes orders regarding add-on expenses.
- 3) On 7/7/26, Father filed a Request for Order seeking modification of child support based on imputation of Mother's earning capacity because Mother has employment history in professional roles and is actively job searching. Father states Mother refuses to provide updated financial disclosures. The matter was set for hearing on 8/6/26.
- 4) On 7/7/26, Father filed an Income and Expense Declaration.
- 5) On 7/31/26, Father filed a Proof of Personal Service indicating Mother was served with the Request for Order and supportive pleadings on 7/11/26.
- 6) Mother did not file a Responsive Declaration.

1 7) The Court notes that Father filed an additional Request for Order on 7/31/26 seeking modification
2 of parenting time. The matter was set for Readiness hearing on 8/31/26.

3 **B. Findings and Order**

4 1) The party requesting imputation of earning capacity must present evidence that the other party
5 has the ability and opportunity to earn the attributed income, including, but not limited to,
6 evidence such as job qualifications, salary payable, and job opportunities. (See *Marriage of*
7 *Wittgrove* (2004) 120 CA4th 1317, 1329; *Marriage of Henry* (2005) 126 CA4th 111, 120.)

8 2) The Court finds Father presented no such evidence of Mother's earning capacity.

9 3) As such, Father's request for modification of child support based on imputation of Mother's
10 earning capacity is DENIED without prejudice.

11 4) The Court will prepare the Findings and Order After Hearing.
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